

BEFORE THE  
FEDERAL MARITIME COMMISSION

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DOCKET NO. 22-31

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TPG PRESSURE, INC.,  
COMPLAINANT

v.

OMNI LOGISTICS LLC, *et al.*,  
RESPONDENTS.

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**DECLARATION OF GENE M. BURD**

I, GENE M. BURD, under penalty of perjury and pursuant to 28 U.S.C. § 1746, declare that the factual statements contained herein are made of my personal knowledge and are true and correct.

1. I am over the age of 18 and am otherwise *sui juris*.
2. I am a partner with the law firm FisherBroyles LLP, counsel for TPG Pressure, Inc. (“TPG”) in this action and in the action styled *EPIC FREIGHT SOLUTIONS LLC vs. TPG PRESSURE INC.*, Cause No. DC-22-17053, in the 191st District Court, Dallas County, Texas (“Texas Action”).
3. Respondent Epic Freight Solutions LLC (“Epic”) commenced Texas Action against TPG on or about December 12, 2022, alleging non-payment of certain unidentified invoices.
4. On or about March 9, 2023, Epic served on TPG its discovery requests in the Texas Action. A true and correct copy of Epic’s discovery requests is attached hereto as Exhibit A.
5. Exhibit 1 to Epic’s discovery requests attaches a list of invoices, which Epic asserted were issued to TPG for certain freight services.
6. On March 24, 2023, the Honorable Judge Gena Slaughter dismissed Texas Action as filed in improper forum. A written order is currently pending.

I declare under penalty of perjury that the foregoing is true and correct.

Dated: April 7, 2023  
Washington D.C.

Respectfully submitted,

A handwritten signature in cursive script, appearing to read "Gene M. Burd". The signature is written in dark ink and is positioned above a horizontal line.

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Gene M. Burd